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UNITED STATES DISTRICT COURT
IN THE DISTRICT OF OREGON
PORTLAND DIVISION

TYLER ALLEN LOFALL, Plaintiff, vs. THE STATE OF OREGON AT EL, *West Linn Pd, Officer Dana Gunnarson, Officer Catlin Blyth, Deputy District Attorney Rebecca Portlock, Clackamas County Jail, Clackamas County Sheriff Office, Clackamas County, John Doe 1, John Doe 2,* Defendants,	Case No.: 3 : 24 – CV - 838 **DECLARATION OF TYLER ALLEN LOFALL**

DECLARATION OF TYLER ALLEN LOFALL IN SUPPORT OF MOTION TO RECONSIDER & MOTIONS TO EXERCISE JURISDICTION.

I, Tyler Allen Lofall, I am the Plaintiff in the above-entitled action. I have personal knowledge of the facts set forth in this declaration and could and would competently testify to these facts if called upon to do so.

1. I am now 39 years old, barely surviving in Portland, Oregon, trading room to stay in that's about twice the size of a twin bed for work on an older house, so that I have time to work on these claims in this matter. In 2017, I came to Portland and took a remodel job in Damascus, Oregon. This job had a series of unfortunate events, unrelated to my work, resulting in a fire in 2018. I ended up taking the long route but helped save the home of an autistic hoarder and now friend, Joanna

Lee Bozian. I met the insurance company, remodeled much of her house, and repaired it from the fire, increasing its value from $400,000 to over $700,000 before I final invoiced. All of which I did in good faith for someone in need.

2. Joanna, a 66-year-old lady awaiting double hip replacement and estranged from her family, passed away before I received my assignment of benefits for the fire restoration. Due to fraud, I had my assignment intercepted in the heart of COVID in a town that did nothing to prevent it. I was convinced by estranged heirs that there was no reason to get the courts involved early, and it sounded good to me with little knowledge of the legal system and not wanting to deal with the delays. This was something I had done with over 1200 claims between 2008 and that time, as I followed Natural Disasters as a Project Manager for the decade preceding this time. They seemed friendly and honest, my work had been completed for months, and I was simply waiting for them to gain Personal Representative Status so that the mortgage company would have the inspection and endorse the proceeds payment from the insurance company since they were still partial owners of the property that I had repaired. The insurance company had approved my invoice in full, the final invoice was complete, and JP Morgan was holding the check I had sent to them awaiting the heirs to have the power to have the inspection. At this point, I needed the money because I had covered all of the costs of the repairs upfront, and the heirs had openly told me there weren't going to be any issues between me and them in any of my work.

3. Honestly, I would have been better off if the laws didn't exist at all because I wouldn't have expected them to, causing me to wait for nothing.

4. In September, I had given the heirs the documentation that JP Morgan had needed to clear the check, along with my packet from the repairs, including the Approved Xactimate Scope of Loss, my bank information that was getting sent to the mortgage company, some documents that I needed to be filled out, and some documents that they had to sign to trigger the inspection.

5. My work was complete and had been substantially completed since Joanna had signed the Assignment of Benefits in June 2020 after a year of stalling due to her misappropriation of funds. It was this misappropriation that caused the creation of the AOB to begin with. Due to her spending the money, it already put me in a bad spot, and it made me do things like upgrade and complete the roof before it was finalized and complete the work, knowing that Joanna blew some money that she wasn't supposed to that was agreed to be part of the renovation that she had asked me to complete because she had no means to do it. I was going to do it ahead of time. We had a contract that she fell through on payments, so I told her I'd finish the house if she had an assignment of benefits before my final invoice went in. After she could not come up with the remainder of the spent money on June 24, 2020, nearly three years after I got to the property for what was supposed to be a simple basement remodel, I was ready to leave. This Assignment was "Irrevocable" and estimated upon the date of June 8, 90% complete, and all I had left at that time was to finish a fence for Joanna because she had been run through with people always trying to dump off their problems on her for 20 years, and this fence was going to draw the line between her and them.

6. There were other issues unresolved at the property, none that were my issues with the fire. In fact, I had done a huge list of other repairs just

killing time trying to help Joanna out while I gave her time to return the spent money, causing huge gains for the family.

7. In October 2020, the heirs having my packet and fixing to reap the benefits of $300,000 gains in my work, who hadn't been to the property since high school, now in their 40s, maliciously through a premeditated fraud attack on me with the help of Joseph McDonald and Brook Woods, their attorneys, staged breaking my things, setting up an eviction, and denial of my claim, meanwhile leading me to believe everything was okay until I was getting the funds released after a mortgage company inspection where they released the proceeds to my final invoice, and unbeknownst to me, being completely blocked by the heirs' lies, and a following day notice I was getting screwed completely. Heirs coming into the house I resided at (the property), tossing my property in a huge pile in the front yard, breaking the heater, mangling the gas line to the stove, breaking my computer, and damaging my work, making it look as if I didn't finish my job (however, it passed bank inspection). Meanwhile, on delayed notification, they took some document not meant for an estimate, put it through probate as if it was my claim, denied it, and waited so that my 60-day window had already started, making it so I was being evicted, my claim rights were running out, and my property was broken all in a bottleneck where I wasn't paid and broke due to emptying my bank accounts to finish the house for their benefits.

8. In January 2021, my assignment of benefits was taken by fraud after I had paid for everything on Joanna's house using my own retirement savings. I faced a shady eviction, WHEN NO ONE WAS EVICT-ABLE, where the lawyers assisted in swindling me with an eviction without pay during the ice storm of 2021. I filed a lawsuit that month, but due to the stringent requirements of the courts, their rules of not telling

anyone anything, and crooked lawyers, I soon realized that these laws I thought were there to protect me were a joke, and there was no protection in Clackamas County. I had a three-day eviction set against me, and I had no idea my response to the court date bounced. With COVID requirements, I sent a half dozen emails, and no one would help me, nor did anyone know what to do. Everything was remote, and my documents were rejected, but I didn't know until after the court date for the eviction, making me homeless and not understanding how or why. It was because the judge never even saw my response.

9. I filed my complaint on January 25, 2021, on what I thought was the last possible date, under extreme pressure from the hidden sneakiness of the heirs and their attorneys. Then my responses and motions for summary judgments were sent to locations where I was previously evicted (the property), then houses with no street number, 'Ridge Road NE,' and not '1907 Ridge Road NE'.

10. What really blew my mind is, despite proving that response statement (literally every single one) the heirs claimed on the answer and motion for summary judgment said was a lie with their own testimony, no one in the entire court system cared. The lawyers knew, the judges knew the lawyers lied on everything, knew it was making me homeless, knew I had an assignment of benefits… not one person cared. It's not about telling the truth; apparently, it's about who follows this magical procedural process that's a secret, and no one tells you anything—not where it is, not what it means, not how to read what or where to look.

11. They committed fraud by offering to turn in my proof of AOB with my final invoice, after I had the check sent to the mortgage company… and giving the Heirs their customer completion docs that was supposed to be sent together with mine. However, physically removing my bank

deposit information and inserting their own, and convinced the mortgage company I fraudulently made the Assignment, and used officers of the court to do it, to use the time to undermine my case. I invested my own retirement savings to finish the house, only to be cheated repeatedly. They funneled my eviction and the due dates for the claims, along with my broken property, so that it was all due at the same time, making it as difficult as possible for me.

12. Then, through fraud upon the court, they lied and said I was a guest to bypass the eviction restrictions in the heart of winter... and the courts allowed it.

13. The DA told me to talk to the Sheriff, the Sheriff told me it was a civil matter, and the courts simply ignored the fraud, thinking that trial in 18 months from now would be justice time to prove who's in the right.

14. Flat broke in an attempt to get my property out of the house, I took one of my trailers that was iffy and had a wheel fall off on my way back to Poulsbo, WA. That ended up, before all said and done, costing me everything on it and broke my transfer case trying to drag the trailer up a ramp to fix the problem, costing me truck, trailer, and load.

15. Then a friend came and picked up the last trailer for me, who already wasted a month helping me. He was screwed with me, costing him his home, where he caught COVID and spent four months in a coma potentially consequentially and/or avoidably.

16. Then, with nothing, I hustled up some money and bought a truck and was trying to sell firewood. I got a firewood permit. Almost instantly, due to the map being of the lots and showing no roads, I was cutting firewood on the wrong side of the road. I

17. was not only blamed for wood that wasn't mine, as I watched a 'logger' later dressed in police uniform cut three trees down, they blamed on me. Apparently, selling firewood from the firewood permit is prohibited, and now facing other legal issues that supersede the reality that I was attempting to survive by cutting up downed trees that were nothing more than future forest topsoil with a permit to do so. Nonetheless, cutting firewood for 'lunch money' would not have even occurred had it not been for the Clackamas County corruption taking over every portion of my life and relationships like a disease.

18. 2022 -RELEVANT TIME-THE FALSE ARREST

19. After almost four years without being substantially paid, draining my bank accounts, and having my property strung across two states while trying to survive, I found myself staying in a friend's basement in 2022.

20. I was awaiting trial and diligently submitting my exhibits and critical documents. However, the court ignored every document I filed in an attempt to highlight known falsehoods in the opposition's filings, no matter how much fraud was involved.

21. The court's procedural requirements seemed designed to deny my constitutional rights, rejecting over 100 filings without any explanation of what I did wrong. Regardless Constitutional rights sure were superseded by undisclosed procedural errors.

22. Even using templates from the Oregon State Bar ("OSB") were denied; I encountered issues after what appeared to be an expiration from only three uses. According to United States Legislative Markup ("USLM") guides, documents are tested for creation and expiration dates, seemingly to control their legality through automation.

23. This means that pro se litigants could have their documents denied without explanation, and without expensive software subscriptions through the State Bar or other major legal management software like Nexus Lexus, Clio, or MyCase which typically only offer annual subscriptions, then they just get denied without being told a reason why... Further encouraging lawyers to take cases against people who don't know how to navigate the legal system, completely contradicting what being a lawyer is meant to stand for.

24. My Master Exhibit list crashed my basic laptop every time I tried to run it. When set up in the most searchable form, with Table of Contents and submitted with 7 Motions in late February, however the court refused to accept the without linking each place in every document I was submitting it for directly to the spot in the list, a simple citation wasn't excepted, and I plainly could not get it to work without crashing my computer, and they wouldn't not take it any other way, Putting me in an endless loop of failure.

25. This was the primary reason I was stuck at Macy's house, refusing to leave until I got a copy of my work files, that I had spent the previous few weeks getting this master exhibit list working, however all 7 documents were denied because of this and Macy wouldn't let me have a copy of my files I put together on her computer, and due to becoming jealous of the time I spent on my claim took them and my car keys.

26. I believed that with my exhibits, my evidence would have been king. I had an irrevocable Assignment of Benefits, consideration given, paid in full to my invoice.

27. Insurance and fiduciary fraud intercepted it, the law should have protected me no matter what mistake I made filing my claim, for the

fraud happened before the error, so even with any excuse the state could come up with, the Heirs and their attorney committed a Class A Felony how ever its looked at.

28. However, the documents fed to me and other low-income and pro se litigants do more harm than good... as they give false hope and the state fails to mention they depend upon meta data and untold cryptic features in order to approve them, violating my Fourteenth Amendment right to due process and equal protection.

MACY CRACKS – WEST LINN DOES NOTHING

29. On March 4th 2022, My situation took a turn for the worse when Macy, driven by jealousy and substance abuse, broke out all the windows in the area I was staying in while West Linn Police Department officers did nothing and watched.

30. They coached her on how to circumvent my eviction while she held my keys and work files hostage. She pounded out the windows with a hammer, took a garden hose, and sprayed all over my bed, electronics, computers, food, and tools.

31. She cut the power, heat, and water and then poured 30 pounds of flour over my property each day for three days in a row. The police did nothing to intervene or protect my rights, violating my Fourteenth Amendment right to equal protection.

32. I called the police on March 4th when she destroyed thousands of dollars of property and in doing so did equal amounts of damage to her own house. I told the WLPD she needed hospital assistance, but they did nothing.

33. Clackamas County also did nothing when $111,943.56 was stolen from me, rendering me and one of my best friends and helpers homeless consequentially, my friend ended up sick and in a COVID coma for four months, arguably avoidable if we were not screwed last minute after investing everything into this house that they capitalized on for over $300,000 increase in value due to my actions...

34. The DA Did Nothing when fraud cost me greatly, The courts did nothing when the Heirs Lied under oath, Clackamas County did nothing and claimed it was a Civil Matter, and now West Linn did nothing when a crazy lady on drugs broke out all my windows, purchased 5 gallons of gas and was threatening to burn down the house right in front of them, then...

35. Initially, I called the police when she pounded out the windows to the basement, began spraying water all over everything in sight, and dumped the first 30-pound bag of flour all over my personal property inside.

36. I remained unreactive to the chaos, but after the West Linn Police Department took no action on days one and two, and after getting shot with a hose on the third day, I decided that two days was enough. On the third day, I grabbed the hose and hammer she was using to beat everything in sight, pointed it at the ground for maybe 15 seconds to protect my person and property. When she wouldn't calm down, I let go, and she walked off with the hose and hammer.

37. It is said that her daughter happened to pull up, was in the car, and took a picture. However, I believe it was a staged event coached by the police, as they needed physical evidence. Her daughter lived in Eugene and miraculously showed up on a Sunday afternoon, despite not having seen her since Christmas. It is doubtful she would wait until

Sunday to visit. Nevertheless, the pictures that the police and DA tried to hide from me clearly show her with a hammer in her hands, flour on her shirt, and spraying me with the hose. In court, they added false statements, converting my actions into stalking material, and fabricated quotes, painting a false narrative.

38. The state's actions and the local government's corruption deeply impacted my life. The false arrest on March 6th, 2022, allowed my Assignment of Benefits (AOB) to spoil as my claims went undefended. Despite numerous attempts to revive the claims, they remained unaddressed.

39. My court-appointed attorney withheld evidence showing Macy had leather work gloves on, a hammer in her hands, and a hose spraying inside the now broken-out windows. This failure to present exculpatory evidence led to my prolonged suffering, violating my Sixth Amendment right to effective counsel.

40. After a night in the low 20s, sprayed with the hose by Macy, wet and cold, with no windows, I knocked on the upstairs windows to get her attention. Officer Dana Gunnarson later wrote this off as stalking Macy and her girls when in reality, I was simply knocking on the door to tell her that what she was doing was too much and to ask her to turn the power back on as I was freezing.

41. The following day, when I could barely move, I disconnected the hot water heater to restore power. The officers made it seem like I was sabotaging Macy when all I wanted was my keys and files so I could leave.

42. If they were going to make false claims that I caused damage, it should be noted that I only reconnected the power to gain some heat and light.

I didn't harm anything; I simply turned the power back on by bypassing her shut-off switch since law enforcement refused to do their duty and allowed Macy's continuous attacks to go unpunished.

43. West Linn made it so I wasn't allowed to protect my property intentionally neglecting to report Macy was pounding out the windows for the third day in a row, or the police taking five gallons of gasoline from her, they even neglected to inform anyone that she recked thousands of dollars of my property, tipped the fridge over, flooded the unit with two water hoses while I was gone, sprayed the TV and turned my bed into a giant runny pancake... None of this was anywhere in any of the reports to the DA; only mentioned in the officers' initial report on March 4th—as if purchasing five gallons of gas and threatening to burn down someone's home is no big deal, in-fact the officers stretched for a false narrative coming up with all sorts of lies.

44. Defendants arrested me without probable cause or reasonable suspicion, with reckless indifference toward fairness. Gunnarson and Blyth conspired to leave this information out, yet both commented on how she "looked uncomfortable" in the picture. Considering the pictures were of the back of her head, I find that to be biased.

45. It was further indicated that she was scared, yet in their interview with her, I had never harmed her. Moreover, she showed no fear, as one who was fearful would be reluctant to smash the windows and spray me and my property while in the same yard alone with me.

46. I complained to Officer Blyth about the lack of action and pointed out that no offensive conduct occurred on my part. Officer Blyth researched the requirements for harassment, and I was correct. Instead of letting me go, he informed Officer Gunnarson that another incident was needed to support the charge.

47. Defendants then manufactured another incident by twisting the facts provided by Macy to support the charge of harassment. Defendants were biased in their reports, using word-spin that I argued against on the spot. This was the importance of the chest cameras that they were wearing, which I have attempted to obtain a copy of for over two years. West Linn sealed the tapes with DHS records because there were no children involved (except one teenage daughter who took a picture and has a restraining order on her own mother now). It obviously has an alternative reason it's blocked.

48. Defendants used word-spin, which is even more damaging than flat-out making up a lie, to change the context. Word-spin gives an entirely different meaning to the statement, adding simple words like "only" or "at," making it easy to slip past someone and look petty to object to. The word-spin here added a sense of urgency and fear for Macy when viewed from a third person by adding the word "only" and twisting it, so it seemed like I only let her go because her daughter took a picture, insinuating that I had intent for worse otherwise.

49. This discovery was forwarded to the District Attorney, who further used this language even after repetitive corrections of "only" and regarding squirting the hose "at [my] windows." It wasn't spraying "at" any windows; more clearly stated 'she took a hammer and banged out all the windows on the house, took in excess of 30lbs of flour each time she did it, took the garden hose, and sprayed where a window used to be, on my tools, computer, TV, files, bed, and person'. Yet knowingly, intentionally, and willfully, both officers twisted the language, constantly making Macy look like a saint, while I was shown no tolerance.

50. Rapid Arrest: From the time the police officer showed up to the time I was arrested, speaking to Macy, her kids, and anybody else coming, stepping over the broken glass, calling through a broken-out window and door, pulling me out, listening to my side of anything I had to say, and then arresting me, debating with me, and putting me in the cop car took a total of 7 or 8 minutes. There is no way that due diligence could happen in seven or eight minutes. They had pictures that I was unaware of showing the hammer, hose, gloves, and Macy breaking out the windows on the side of the house that the police officers were standing in. They knew there wasn't any watering of plants going on because there was only sand on that side of the house, yet they stated that Macy was watering her garden, which is untrue.

51. I remained in jail for some time, and after discovering my public defender wasn't going to win the case for me, as she only wanted to make a deal, I went pro se.

52. This is when I first was allowed the privilege of seeing the photos they used as their arresting "evidence," which should have been exculpatory evidence. They proved she had a hammer in her hands, a hose spraying inside my windows, not "at them," with flour and gloves on to handle the glass. Yet none of this was in any of my discovery.

53. I was given a five-day plea deal by the DA's Office, but I refused to accept guilt, so they leveraged me and bullied me.

54. The State had an asterisk, "" on my statute/charge, to be used as a wild card, because they did not have an offense locked in. In fact, they had nothing but a bogus statement that didn't consist of a crime they arrested me for.

55. Officers' Revisions: The officers continually revised the facts of the case after I was arrested. They changed their discovery, making me look worse. They added things like I was a multiple felon, which I'm not, and that I was violent, despite never having a violent claim against me. They wrote that I was unemployed, even though it was clear I was trying to get my work files back. They knew Macy was violent and unstable, yet they ignored all her actions and focused on blaming me, violating my rights repeatedly.

56. Moreover, the statement they obtained was from a witness who walked into the courthouse the following day strung out and was caught entering my arraignment with drugs on her. Consequently, due to a series of these events, she lost custody of her children. Yet, she was still considered a credible witness?

57. Before realizing that my rights had already been violated due to the state's lack of due diligence to check the officers' ignorance, and the supervisors' deliberate indifference allowing the officer to change her testimony repeatedly, it was clear that even with their lies, it didn’t amount to harassment because I had done nothing wrong.

58. The DA somehow signed off on the arraignment, showing that the separation of powers failed due to corruption and lack of due diligence. I assert that I am far from the first, and I will not be the last, as this is a daily occurrence in Clackamas County.

59. Macy didn’t even screen in for a Domestic Violence Victim and I had zero past of domestic violence, violent crimes, or any crime whatsoever in the state of Oregon.

60. Macy had an extensive record of false accusations accusing her ex-husband of child molestation... and I testify that to be her sexual fantasy, no one else's.

61. Mrs. Portlock, while blocking various release hearings or no-contact waiver motions, continued to stretch the truth about my actions.

62. The language used when referring to me made me seem like the villain to eliminate my credibility, regarding "at his windows" and "only let her go...", both of which were repeatedly corrected yet continually used. These games of not needing to expose the true facts if the conviction occurs corrupt the courthouse in Clackamas County. Defendant Rebecca Portlock stuck to her corrupted facts, even after Macy, as crazy as she may arguably be, set a waiver of no contact hearing and wrote letters to release me because she knew I didn't do anything.

63. I notified the State AND Attorney General that I was going to bring forth this lawsuit on the record while in jail. To prevent this lawsuit, the State, through DA Rebecca Portlock, with reckless disregard for the truth and my innocence, attempted to avoid this lawsuit by obtaining a guilty verdict in the criminal harassment case, justifying all actions used in the prosecution.

64. After being leveraged over the custody of her children being more freely given/returned to further prosecute me falsely, Macy was then pressured in many ways and in an even more fragile mental state by the Victim Advocate and the DA attorney, both of whom shared the same Masonic building for their offices. Both put pressure on Macy to the point she felt the need to leave the country because she didn't want to compromise her morals, even at the risk of her children.

65. Harms and Injustice within the Jail System

66. I was released briefly but with inadequate clothing in rain and hail. Trying to comply with the restraining order, but I needed warm clothes desperately, only to end up in the hospital with hypothermia. The police then issued me a violation of the no-contact order, causing another arrest while my core bodye temperature was dangerously low, violating my Fourteenth Amendment right to due process, all preventable had the police done their job and not violated my rights.

67. During my time in jail, I was denied access to both the civil law indefinitely and criminal law by denial of access to the law library up to 9 days in a row. These actions spoiled my civil claims for no reason.

68. After 129 days for no reason, they dismissed the same charges they fought to keep on me so hard without explanation, no care, no "I'm sorry," no nothing. It's obvious the state didn't walk into a trial court on trial day for a second time in one case completely obvious they knew they were not going to trial weeks or months prior.

69. Numerous requests for discovery while in jail were ignored, violating my Fifth Amendment right against double jeopardy.

70. Being pro se, I requested discovery, and my discovery and habeas corpus requests were ignored in excess of 14 times.

71. Four months later, after a series of additional issues in jail, including catching COVID, files being deleted, being denied law library access for 9 days in a row, medical grievances ignored, and being kept past my release when the jail had contradicting court paperwork declaring I was to be released.

72. Despite notifying the DA that she was liable for the loss of my civil claims and the police failing to secure my property, everything I had left

was stolen. My car was pillaged, trailers were gone, and the remaining property was left in tubs full of water.

73. May 24th 2022 after Macy Bailed me out, I was re-arrested on the same charge I had bailed out for, effectively subjecting me to double jeopardy. This time, while helping a friend recover a stolen vehicle, the police gave the car keys to the thief despite my protests, resulting in the car being stolen again. This incident was captured on cruiser footage showing me tell the officers not to give the girl my keys and they allowed her to drive away anyways.

74. The West Linn Police officers hid their evidence behind a DHS seal and changed their policy once I filed my claim to sue them.

75. I was forced into a cell with someone who had COVID, then forced to give it to someone else with an assault charge on an officer, both in retaliatory actions. Forced to catch COVID, I missed my civil trial, and this added a counter-suit of $32,599.50 on top of my $111,943.56 AOB loss, violating my Fourteenth Amendment right to due process.

76. On June 10th, 2022, the District Attorney (DA) Rebecca Portlock, my court-appointed advisor Rubin Medina, and Judge Steele colluded against me by falsely claiming I had COVID-19 to delay my trial. As I entered the courtroom, I overheard someone say, “Get him out of here before the judge sees him.” Despite being ready for my criminal trial, dressed and at the courthouse, and the DA having no witness, Portlock lied about my COVID status to push back the trial. My advisor Medina, who was not my attorney but appointed to assist me as I was representing myself, conspired with the DA and Judge Steele by stating I had tested positive for COVID on the previous two days, which was untrue. The judge mentioned that Medina had informed her the night before about my supposed COVID status. However, I had not tested

positive for COVID since May 29th. Despite this, the judge accepted Medina's and the DA's falsehoods, delaying my trial for six weeks and allowing the DA to stack charges against me, including no-contact violations with Macy, who had bailed me out of jail.

77. On June 20th, the jail deleted records of 62 of my case files and trial prep documents and then denied me Law library all week. These files were specific to only me as I was able to pull up the deleted files and see that only mine were selectively deleted. The Jail has blocks on accessing specific areas of the law library computers, and obviously, the guard that deleted my documents didn't have the computer skills I have because those blocks didn't stop anything in CMD prompt I was able to see that it was only my files, and it was a guard that deleted them. Exactly 5:10 PM on June 20th a guard during dinner lockdown deleted my files in spite or by direction, undoubtedly ensuring I remained at a disadvantage in court, violating my Fourteenth Amendment right to equal justice.

78. The systemic corruption and collusion within the judicial system have left me with nothing—years lost, friendships and relationships destroyed, homelessness, health deterioration, and experiencing repeated humiliation and harm.

79. Additionally, during my incarceration, the jail repeatedly denied me access to the law library, sometimes for up to nine days in a row. The week after my court was moved back and then my files deleted, I was denied access for six consecutive days.

80. Furthermore, I was denied a thumb drive on at least six occasions, which severely hindered my ability to prepare my defense. On June 20th, 2022, an officer deleted 62 critical legal documents, further incapacitating my defense efforts.

81. On June 24th, 2022, Macy, who had returned from out of the country, stated on the record that I "broke no laws," contradicting the DA's false claims against me. Despite her willingness to testify at a no-contact hearing on July 1st, Macy was denied the opportunity to speak fully, especially when it became clear she intended to state information unfavorable to the DA's case. These actions significantly impaired my ability to defend myself, and it was clear that the system was working against me by blocking my access to justice.

82. Deleted Files: While in jail, 62 of my files were deleted on June 20th, 2022. During this time, I had been denied access to the law library for up to nine consecutive days, multiple times over five days. As a pro se litigant, I faced this because both attorneys appointed to me were corrupt—one withheld exonerating photographs, and the other colluded with the judge and opposing counsel against me based on lies, violating my Sixth Amendment right to counsel.

83. Denied Thumb Drive: I was denied a thumb drive despite making at least half a dozen requests.

84. Case Dismissal: After 129 days, much of which I spent in jail, the case was dismissed.

85. Unlawful Detention: On July 1st, I was ordered to be released by the court, yet the jail kept me for an additional week. I submitted numerous kites, but they led nowhere. The officers are so accustomed to jerking inmates around that it has become second nature to them, and when someone is actually in the right, they continue this behavior. When I got out of jail, I pulled the records and found that they had my release documents the entire time.

86. Grievance Follow-Up: After five weeks, a lieutenant followed up on my grievance and dismissed it as me just being "unhappy" because I was given COVID. At the same time, I believed he was there to address the officer deleting my court documents—both are real issues. Yes, I was unhappy—unhappy because the entire system is corrupt and the individuals responsible for the extra harm, grief, and illegal actions need to face justice themselves.

87. This is just the beginning of my story. The systemic failures, the corruption within the West Linn Police Department, the negligence of Clackamas County, and the overall lack of justice have left me in a state of despair. My fight for justice continues, not just for myself but to expose the broader issues within the system that have affected many like me.

CONCLUSION:

88. Nothing in my entire life has been more unfair, harmful, corrupt, and has caused me more anger and desire for justice than the past four years of injustice I have experienced due to the state's actions. I have had more uncontrollable thoughts of vengeance, and every corrupt state employee needs to be held accountable for their actions. Why should systemic failures allow innocent people to lose everything because they can't navigate the automation factors quickly enough to respond correctly? I did nothing wrong; I was in the right. The state took my liberties away from me for no reason.

89. I speak very clearly when I say this: "I won't accept this loss, and I am nearing the end of my attempt to peacefully reach out." Those who steal and cause unjust harm, destroying my relationships and taking away my liberties and passions, must be held accountable. All they had to do was listen to what I was saying at any point along the way,

and my whole life would have been different. These automation law makers will not bully me and expect me to give in. I will take this case to the end, to the steps of Washington DC, to the doors of the prisons. I won't be ignored, bullied, or pushed aside. Oregon took my rights, and they owe me accountability. I demand it.

90. I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Respectfully submitted June 23rd 2024,

/S/ Tyler A Lofall

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